



US0D1090361S

(12) **United States Design Patent**
Friedl et al.

(10) **Patent No.:** **US D1,090,361 S**
(45) **Date of Patent:** **** *Aug. 26, 2025**

(54) **FRONT RIGHT SIDE SPOILER FOR A MOTORCYCLE**

(71) Applicant: **KTM AG**, Mattighofen (AT)

(72) Inventors: **Thomas Friedl**, Seekirchen (AT);
Marco Hubmann, Judenberg (AT)

(73) Assignee: **KTM AG**, Mattighofen (AT)

(*) Notice: This patent is subject to a terminal disclaimer.

(**) Term: **15 Years**

(21) Appl. No.: **29/902,707**

(22) Filed: **Sep. 15, 2023**

(30) **Foreign Application Priority Data**

Jul. 12, 2023 (DE) 20 2023 103 889.1

(51) **LOC (15) Cl.** **12-11**

(52) **U.S. Cl.**
USPC **D12/114; D12/126**

(58) **Field of Classification Search**
USPC D12/110, 114, 126, 182, 184, 186
CPC ... B62J 17/00; B62J 17/02; B62J 17/04; B62J
23/00; B62K 11/00; B62K 11/02; B62K
11/04

See application file for complete search history.

(56) **References Cited**

U.S. PATENT DOCUMENTS

D557,639	S	*	12/2007	Xu		D12/126
D573,066	S	*	7/2008	Ichikawa		D12/107
D584,662	S	*	1/2009	Ichihara		D12/126
D603,762	S	*	11/2009	Hayashi		D12/126
D660,201	S	*	5/2012	Matsuoka		D12/126
D660,202	S	*	5/2012	Petersson		D12/186
D660,203	S	*	5/2012	Yamazaki		D12/186
D684,506	S	*	6/2013	Kobayashi		D12/126

D689,800	S	*	9/2013	Futamata		D12/126
D690,625	S	*	10/2013	Futamata		D12/126
D694,157	S	*	11/2013	Katagiri		D12/126
D695,157	S	*	12/2013	Tsukui		D12/126
D711,290	S	*	8/2014	Akita		D12/126
D711,291	S	*	8/2014	Futamata		D12/126
D772,108	S	*	11/2016	Petersson		D12/126
D776,017	S	*	1/2017	Takigawa		D12/126
D782,369	S	*	3/2017	Fujimoto		D12/114
D786,141	S	*	5/2017	Tachibana		D12/114
D803,105	S	*	11/2017	Tsuji		D12/114
D803,107	S	*	11/2017	Petersson		D12/114
D840,279	S	*	2/2019	Tako		D12/114
D867,224	S	*	11/2019	Li		D12/126

(Continued)

OTHER PUBLICATIONS

“Product information KTM Spoiler | 76908051000C1.” KTM-Versand.de., Mar. 29, 2023 [online], [retrieved on Feb. 29, 2024]. Retrieved from the Internet <URL: <https://ktm-versand.de/65124/ktm/spoiler>>.*

(Continued)

Primary Examiner — Darlington Ly

(74) Attorney, Agent, or Firm — Rod D. Baker

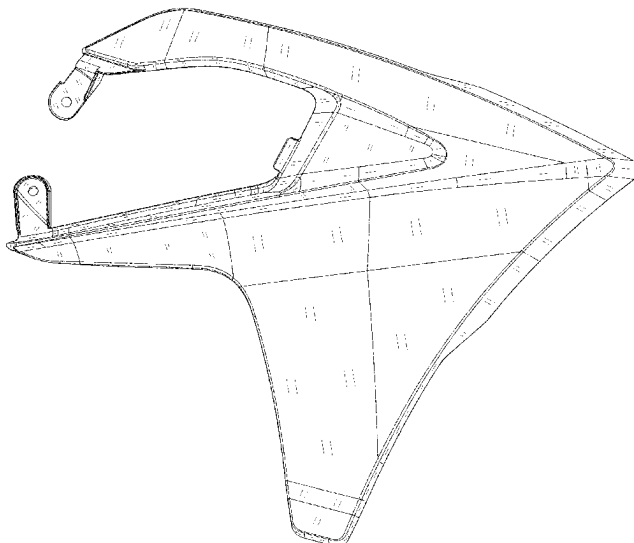
(57) **CLAIM**

The ornamental design for a front right side spoiler for a motorcycle as shown.

DESCRIPTION

FIG. 1 is a right side elevation view of a front right side spoiler for a motorcycle showing our new design;
FIG. 2 is a left side elevation view thereof;
FIG. 3 is a top plan view thereof;
FIG. 4 is a bottom plan view thereof;
FIG. 5 is a rear elevation view thereof;
FIG. 6 is a front elevation view thereof;
FIG. 7 is a left side perspective view thereof; and,
FIG. 8 is a right side perspective view thereof.

1 Claim, 8 Drawing Sheets



(56)

References Cited**U.S. PATENT DOCUMENTS**

D867,225	S *	11/2019	Li		D12/126
D877,663	S *	3/2020	Miki		D12/114
D878,973	S *	3/2020	McGinley		D12/126
D885,990	S *	6/2020	Katagiri		D12/114
D885,992	S *	6/2020	Shigihara		D12/114
D886,687	S *	6/2020	Yoshitomi		D12/114
D890,634	S *	7/2020	Katagiri		D12/114
D909,258	S *	2/2021	Takizawa		D12/114
D929,908	S *	9/2021	Kuriki		D12/114
D930,513	S *	9/2021	Sasaki		D12/114
D975,603	S *	1/2023	Kanemura		D12/114
D986,118	S *	5/2023	Kanemitsu		D12/126
D987,486	S *	5/2023	Carbonara		D12/114
D994,547	S *	8/2023	Carbonara		D12/114
D1,014,344	S *	2/2024	Frahammer		B62J 17/10
					D12/114
D1,034,334	S *	7/2024	Friedl		B62J 17/00
					D12/114
2009/0108629	A1 *	4/2009	Takahashi		B62J 17/10
					296/192
2011/0233956	A1 *	9/2011	Okubo		B62J 17/10
					296/78.1
2014/0084623	A1 *	3/2014	Miyamoto		B62J 25/02
					296/180.1
2019/0329722	A1 *	10/2019	Shinohara		B60R 13/04
2022/0073163	A1 *	3/2022	Sawada		B62J 17/00

OTHER PUBLICATIONS

“Engine Spoilers for Motorcycle KTM 1290 Superduke GT 2023.” Puig Hi-Tech Parts., Mar. 21, 2023 [online], [retrieved on Feb. 29,

2024]. Retrieved from the Internet <URL: https://puig.tv/en/tuning-motos/engine-spoilers/engine-spoilers?&bike=30543&location_iso=US>.*

“Alpha Racing fairing Set GRP fibreglass 6-piece, BMW S1000 RR 2023-(K67).” HHR Performance., Jul. 20, 2023 [online], [retrieved on Feb. 29, 2024]. Retrieved from the Internet <URL: <https://hhrperformance.com/i-31649107-alpha-racing-fairing-set-grp-fibreglass-6-piece-bmw-s1000-rr-2023-k67.html>>.*

“Puig 21405J spoiler motore in ABS per KTM Superduke GT dal 2021 nero opaco.” Ricambi Bauletto Moto., Jul. 11, 2018 [online], [retrieved on Feb. 29, 2024]. Retrieved from the Internet <URL: <https://www.ricambibaulettomoto.it/puig-21405j-spoiler-motore-in-abs-per-ktm-superduke-gt-dal-2021-nero-opaco.html>>.*

“Spoiler Set.” John Lee & Sons., Aug. 12, 2023 [online], [retrieved on May 1, 2024]. Retrieved from the Internet <URL: <https://www.johnleemotorcycles.co.uk/product/spoiler-set-a59008054000c1/>>.*

“Acerbis Radiator Shroud Yamaha YZ250F.” MX1 Canada., Dec. 16, 2018 [online], [retrieved on May 1, 2024]. Retrieved from the Internet <URL: <https://www.mx1canada.com/acerbis-radiator-shrouds-yamaha-yz250f-19-yz450f-18-19-yz450fx-19-black-2685870001.html>>.*

“UFO Radiator Shrouds Honda CRF450R 2005-2008.” Rev Zilla., Feb. 22, 2023 [online], [retrieved on May 1, 2024]. Retrieved from the Internet <URL: https://www.revzilla.com/motorcycle/ufo-radiator-shrouds-honda-crf450r-2005-2008?sku_id=10309844>.*

KTM AG, Eight photographs of applicant KTM AG’s right front spoiler for its “Gas Gas” brand motorcycles, Model Years 2021-23; Model Nos. EC250, EC300, EC250F, EC350F; MC125, MC250; MC250F; first publication date Aug. 20, 2020.

* cited by examiner

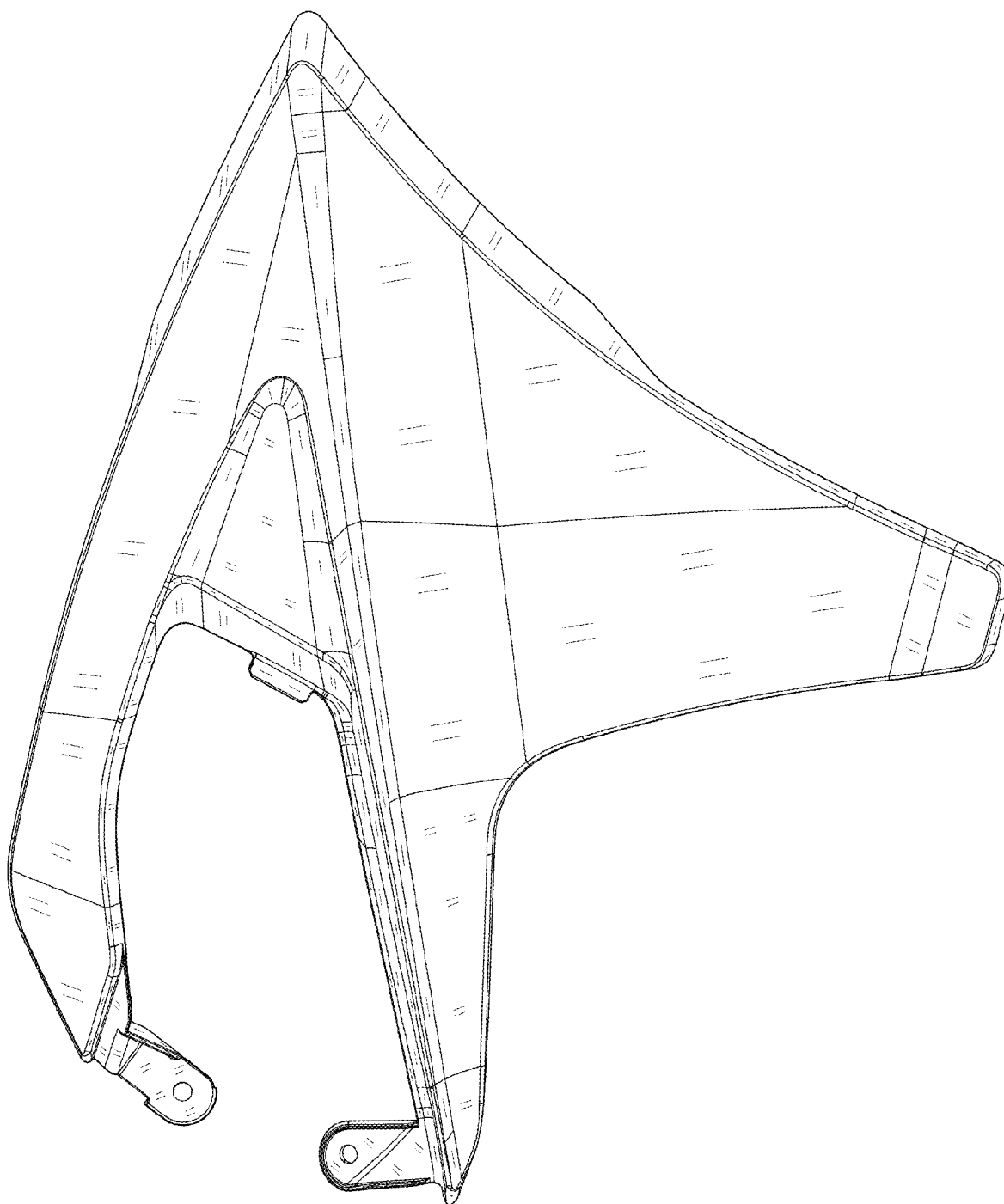


FIG. 1

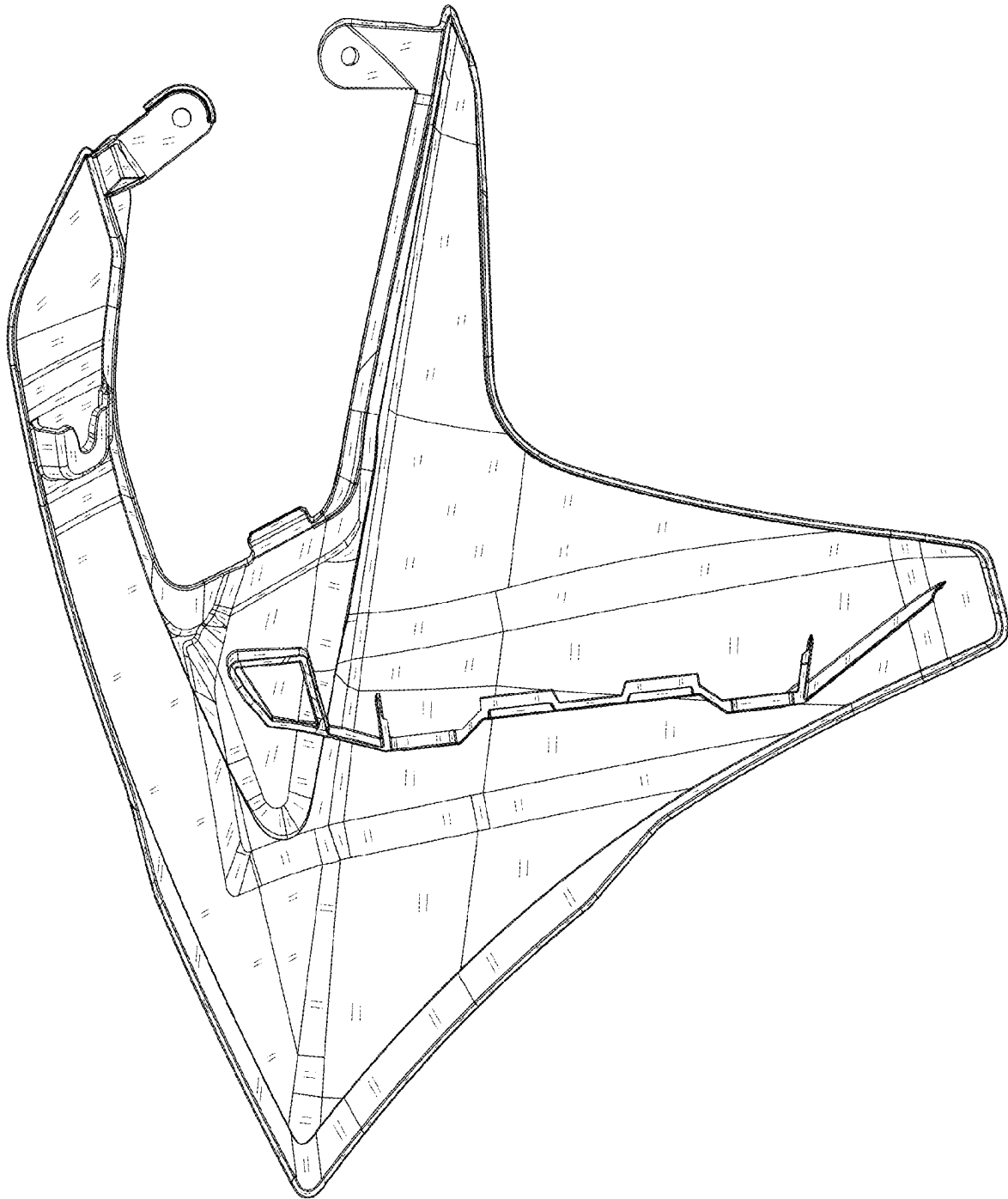


FIG. 2

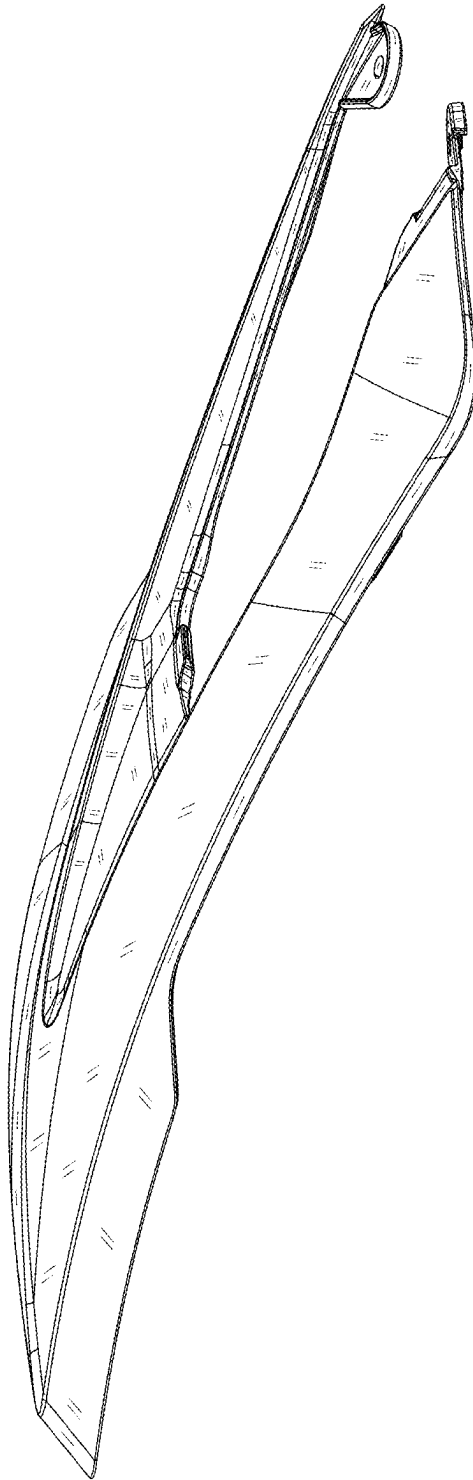


FIG. 3

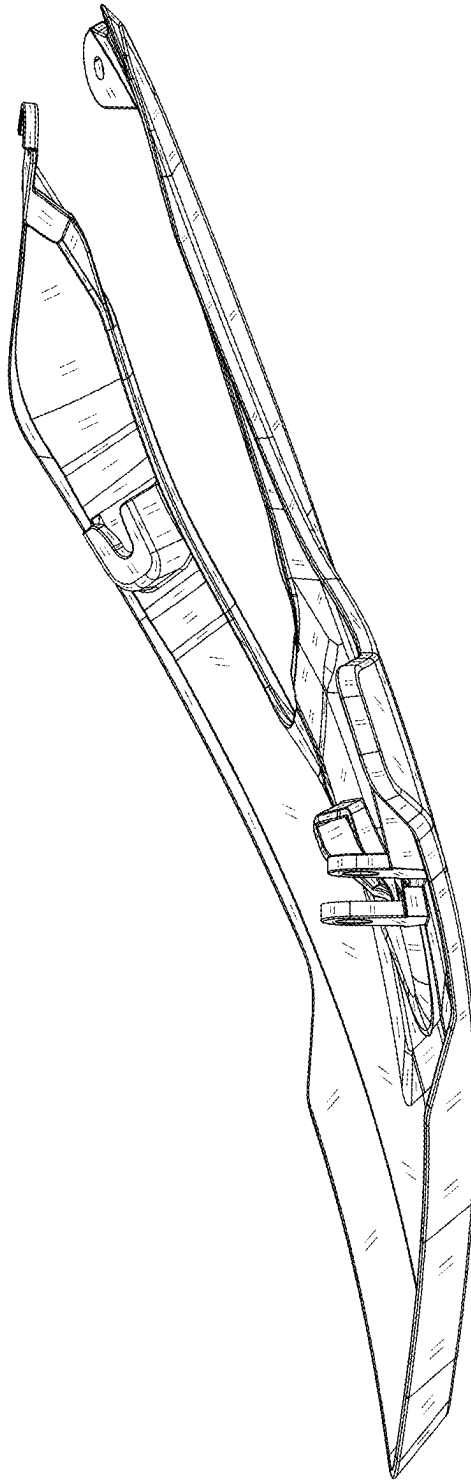


FIG. 4

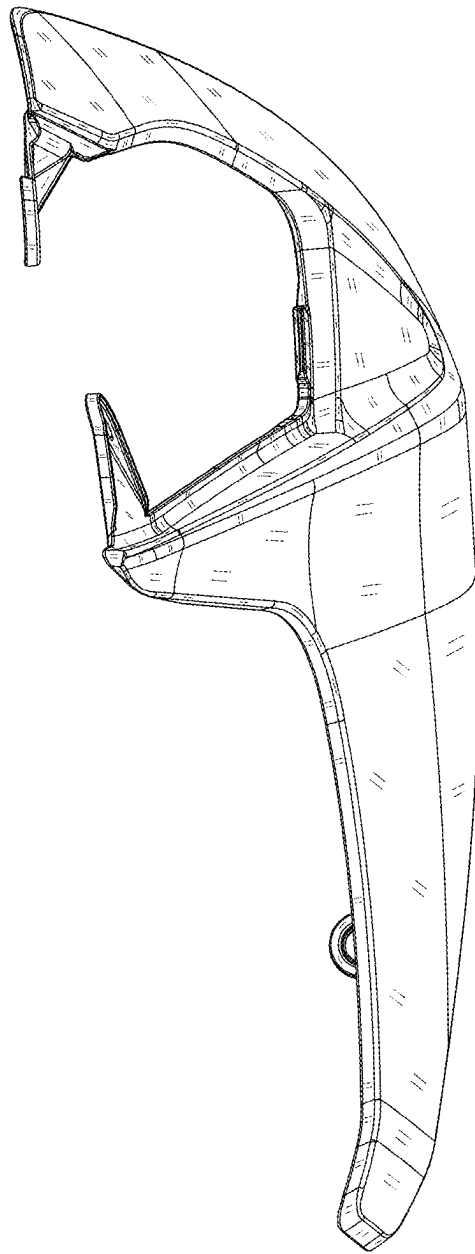


FIG. 5

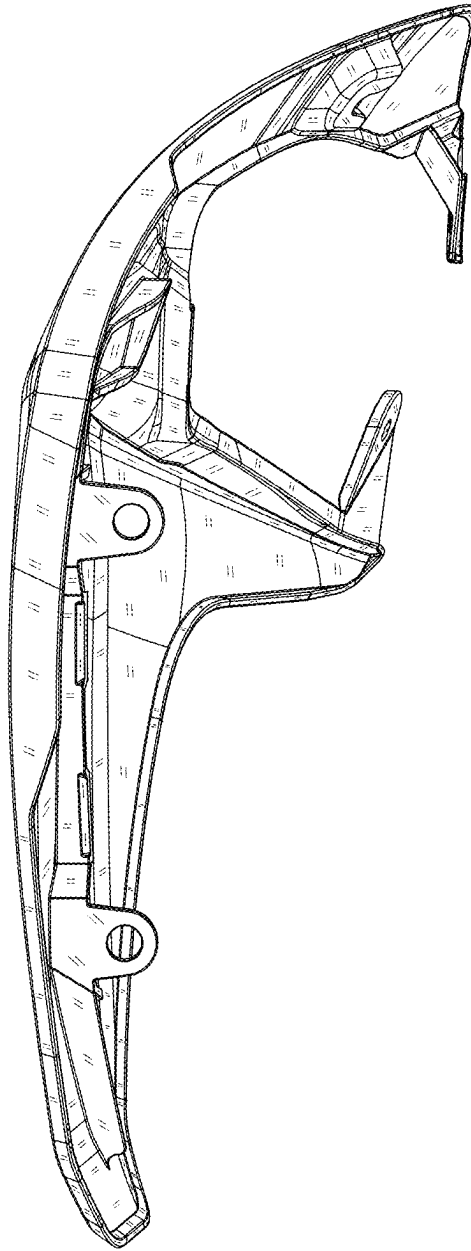


FIG. 6

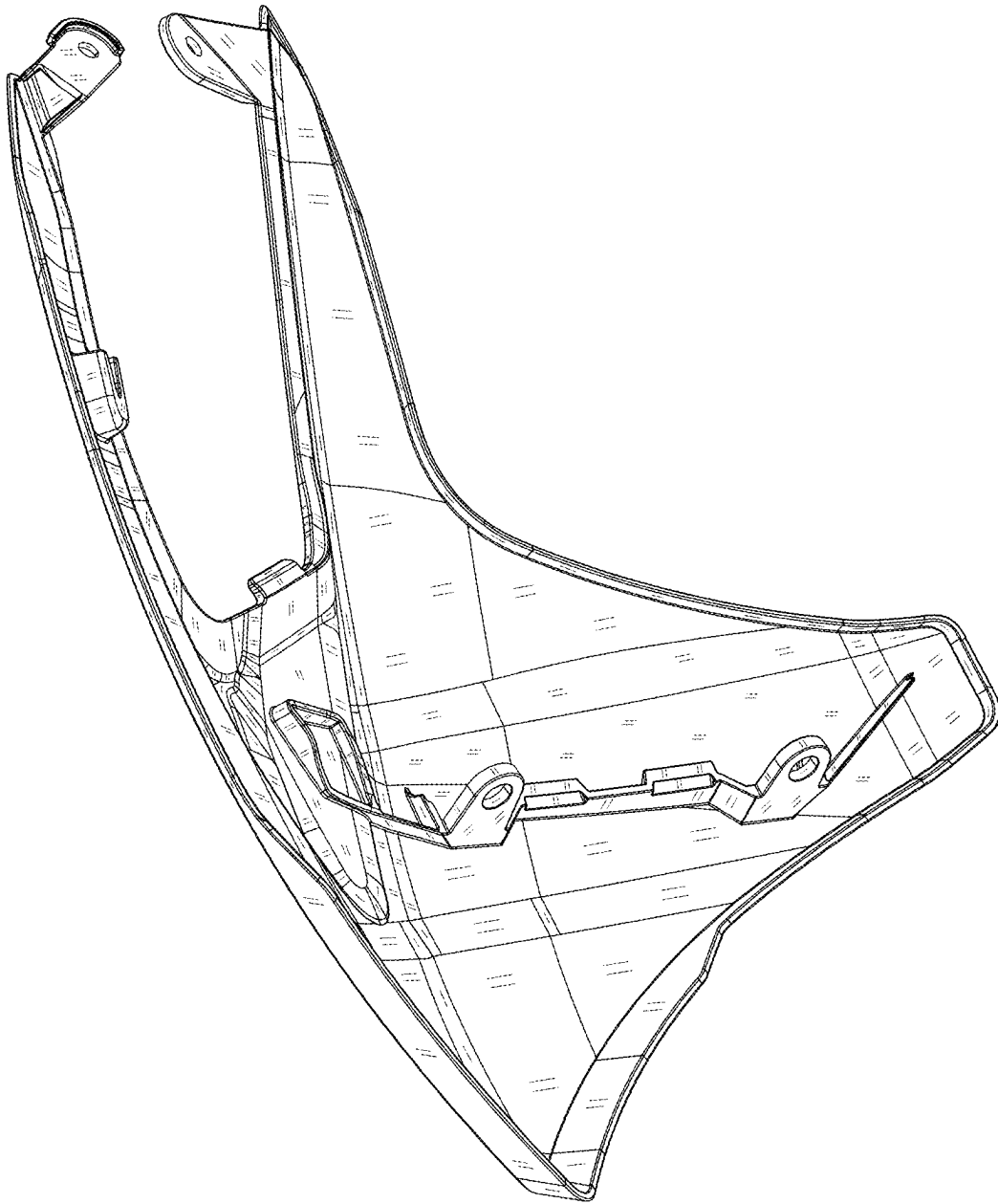


FIG. 7

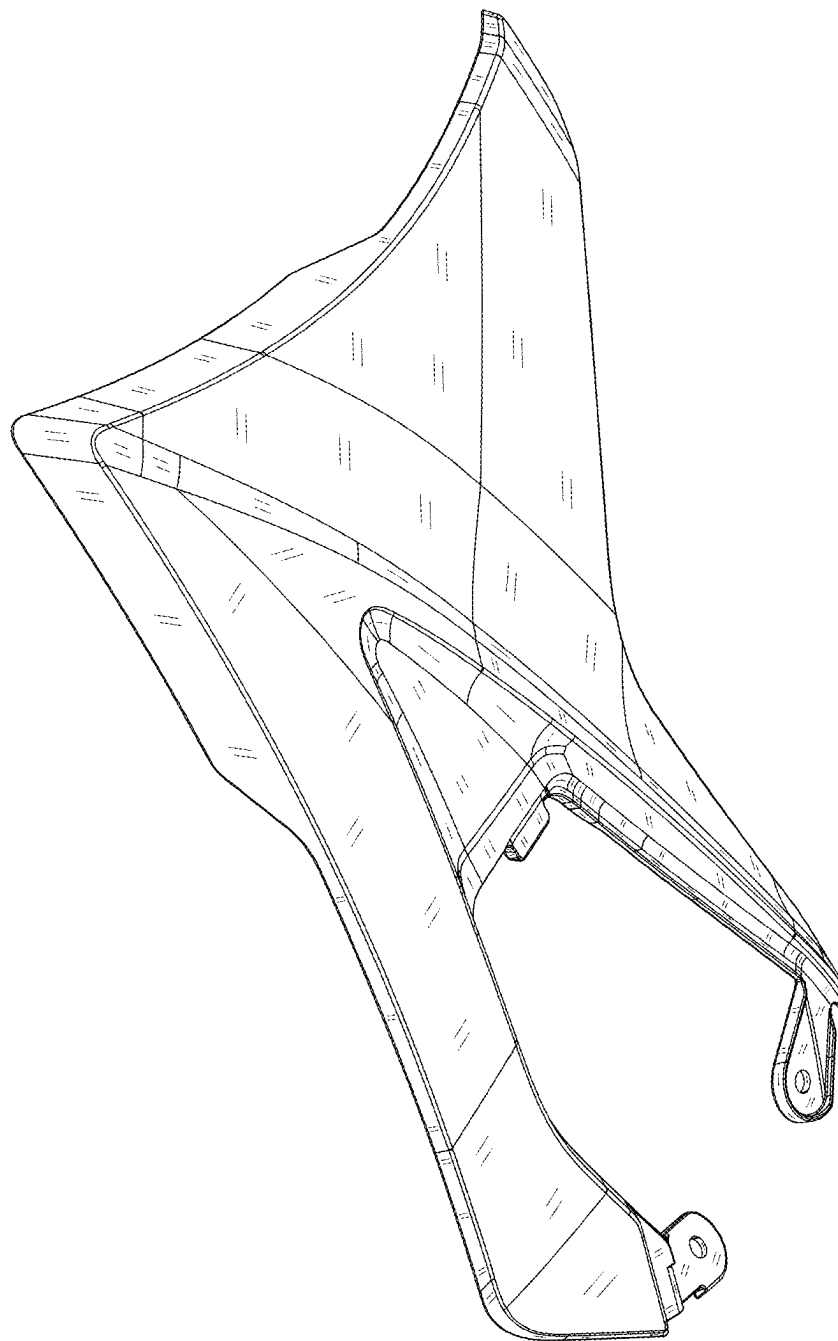


FIG. 8